

STATE OF NEW YORK

6581--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to excluding amphibians and reptiles from the definition of small game; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph c of subdivision 2 of section 11-0103 of the environmental conservation law, as amended by chapter 706 of the laws of 2005, is amended to read as follows:

c. "Small game" means black, gray and fox squirrels, European hares, varying hares, cottontail rabbits, ~~[native frogs]~~ bullfrogs, ~~[native salamanders, native]~~ common snapping turtles, ~~[native lizards,]~~ native snakes, coyotes, red fox (*Vulpes vulpes*) and gray fox (*Urocyon cinereogenteus*) except captive bred red fox or gray fox, raccoon, opossum, or weasel, skunk, bobcat, lynx, muskrat, mink, except mink born in captivity, fisher, otter, beaver, sable and marten but does not include coydogs.

§ 2. Subdivision 4 of section 11-0701 of the environmental conservation law, as amended by section 1-a of part R of chapter 58 of the laws of 2013, is amended to read as follows:

4. A fishing license entitles the holder to take fish by angling, spearing, hooking, longbow and tipups, to take ~~[frogs by spearing, catching with the hands or by use of a club or hook,]~~ bullfrogs in a manner determined by the department in regulation and to take bait fish for personal use, as provided in titles 9 and 13 of this article, except that such license shall not entitle the holder to take migratory fish of the sea or to take fish from the waters of the marine district.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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§ 3. Paragraph a of subdivision 6 of section 11-0703 of the environmental conservation law, as amended by section 2 of part R of chapter 58 of the laws of 2013, is amended to read as follows:

a. Except as provided in section 11-0707 and section 11-0709 of this title, no person shall (1) hunt wildlife unless such person holds and is entitled to exercise the privileges of a hunting license; (2) hunt antlerless deer in a special open season therefor pursuant to subdivision 6 of section 11-0903 of this article unless such person holds and is entitled to exercise the privileges of and has on ~~[his or her]~~ their person while so hunting a hunting license, bowhunting privilege or muzzle-loading privilege, and a special antlerless deer license; (3) take fish or ~~[frogs]~~ bullfrogs in the manner described in subdivision 4 of section 11-0701 of this title unless such person is entitled to exercise the privileges of a fishing license; (4) trap wildlife unless such person holds a trapping license.

§ 4. Paragraph c of subdivision 1 of section 11-0707 of the environmental conservation law, as amended by chapter 721 of the laws of 1975, is amended to read as follows:

c. to take fish and ~~[frogs]~~ bullfrogs, except that they may not take bait fish by net or trap, all as if they held the licenses defined in section 11-0701 and required by subdivision six of section 11-0703~~[7 subdivision 6]~~.

§ 5. Paragraph c of subdivision 3 of section 11-0901 of the environmental conservation law, as amended by section 19 of part EE of chapter 55 of the laws of 2014, is amended to read as follows:

c. Wild small game and wild upland game birds shall be taken only by longbow or gun, or by the use of raptors as provided in title 10 of this article, except that:

(1) skunk, raccoon, bobcat, coyote, fox, mink and muskrat may be taken in any manner not prohibited in this section or in title 11 of ~~[the Fish and Wildlife Law]~~ this article; and

(2) ~~[frogs]~~ bullfrogs may ~~[also]~~ be taken ~~[by spearing, catching with the hands, or by the use of a club or hook]~~ in any manner determined by the department in regulation; and

(3) crossbows may be used but only by licensees who are fourteen years of age or older.

§ 6. Paragraph f of subdivision 2 of section 11-0903 of the environmental conservation law, as added by chapter 706 of the laws of 2005, is amended to read as follows:

f. ~~[frogs, salamanders]~~ bullfrogs, common snapping turtles, ~~[lizards]~~ and snakes.

§ 7. Paragraphs t and u of subdivision 2 of section 11-0905 of the environmental conservation law are REPEALED.

§ 8. Paragraph i of subdivision 2 of section 11-0905 of the environmental conservation law, as amended by chapter 256 of the laws of 1999, is amended to read as follows:

i. [Frogs] <u>Bullfrogs</u>	Fixed annually	Fixed annually
	by regulation	by regulation

§ 9. Paragraph c of subdivision 6 of section 11-0103 of the environmental conservation law, as amended by chapter 706 of the laws of 2005, is amended and two new paragraphs f and g are added to read as follows:

c. "Protected wildlife" means wild game, protected wild birds, protected insects, wild reptiles, wild amphibians, species of special concern and endangered and threatened species of wildlife designated by the department pursuant to section 11-0535 of this article, species

1 listed in section 11-0536 of this article and species protected pursuant
2 to section 11-0311 of this article.

3 f. "wild reptiles" means all native lizards and turtles, other than
4 common snapping turtles, existing in a wild state.

5 g. "wild amphibians" means all native toads, salamanders, newts, and
6 frogs, other than bullfrogs, existing in a wild state.

7 § 10. This act shall take effect immediately.